

ADDENDUM NO. 2 TO ADA/PROWAG CIVIL RIGHTS GRIEVANCE

City of Bloomington, Indiana

717 S. Henderson Street — Supplemental Submission: Unsigned Construction Obstructions Are a Citywide Pattern, Not an Isolated Occurrence

Submitted to: Michael Shermis, ADA Coordinator / Human Rights Commission Director

City: City of Bloomington, Indiana

Date: July 16, 2026

Re: Addendum No. 2 to ADA/PROWAG Complaint dated July 7, 2026 — 717 S. Henderson Street

This is a supplemental submission to the ADA/PROWAG complaint dated July 7, 2026, regarding 717 S. Henderson Street (the “Complaint”). It is submitted as an addendum to the Complaint, not as a new complaint, and does not restart the 60-day response period established in Section 10 of the Complaint, which continues to run from the Complaint's original filing date of July 7, 2026.

Addendum No. 1 documented that the City directed pedestrians to an inaccessible route during construction at 717 S. Henderson Street without a compliant alternate, contrary to the obligation described in Section 5 of the Complaint. This addendum documents that the same practice — construction obstructing a sidewalk without warning signage or a signed accessible alternate route — is currently occurring at multiple, unrelated locations across the City. It is offered in direct response to the anticipated defense described in Section 8.3 of the Complaint, that the Henderson condition is “an isolated construction issue, not a systemic problem.” The complainant took the below photographs during the first weeks of July 2026.

Documented Locations

1. Dunn Street, South of Sixth Street

The sidewalk on Dunn Street just south of Sixth Street has been reduced to loose gravel during construction, with no warning signage and no alternate route identified. This condition has been ongoing for several weeks.



Fig. 16: Gravel sidewalk condition on Dunn Street south of Sixth Street, southeast view (complainant's photograph).



Fig. 17: Gravel sidewalk condition on Dunn Street south of Sixth Street, southwest view (complainant's photograph).

2. First Street and Mitchell Street, Northeast Corner

A compliant curb ramp previously existed at the northeast corner of First Street and Mitchell Street. Current construction has converted this ramp to loose gravel, with no signage posted.

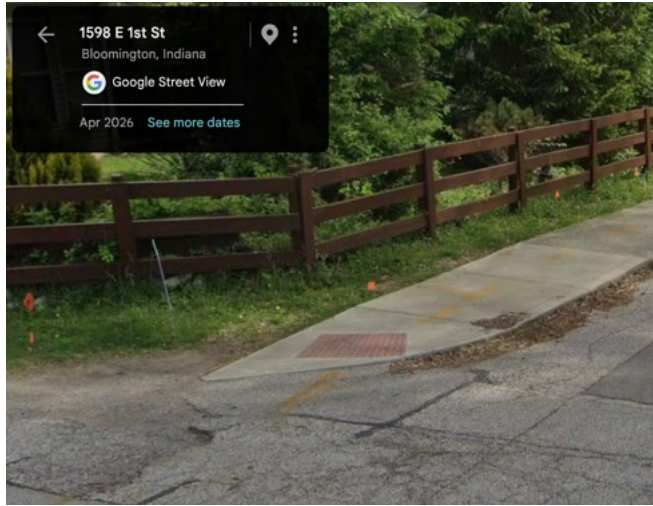


Fig. 18: Prior curb ramp at the northeast corner of First Street and Mitchell Street (Google Street View, April 2026).



Fig. 19: The same ramp reduced to gravel by current construction, with no signage posted (complainant's photograph).

3. Grant Street and Kirkwood Avenue, Southwest Corner

Construction at the southwest corner of Grant Street and Kirkwood Avenue obstructs the sidewalk. No signage was posted at the south approach.



Fig. 20: Construction obstructing the sidewalk at the southwest corner of Grant Street and Kirkwood Avenue, viewed from the east (complainant's photograph).



Fig. 21: The same location viewed from the south approach, showing no warning signage (complainant's photograph).

4. Third Street, West of Eagleson Avenue

A gravel section interrupts the sidewalk on Third Street just west of Eagleson Avenue. Third Street is a busy roadway with no separation between the sidewalk and travel lane, making this obstruction particularly hazardous.



Fig. 22: Gravel sidewalk section on Third Street west of Eagleson Avenue (complainant's photograph).

Significance

These four locations, unrelated to 717 S. Henderson Street and to one another, share the same defect identified in Section 5 of the Complaint: construction is permitted to obstruct a pedestrian route without a signed, compliant accessible alternate. This is independent evidence of the administrative gap described in Section 6 of the Complaint — the absence of ADA/PROWAG review during construction — and directly rebuts any characterization of the Henderson Street condition as an isolated incident.

The complainant requests that the City's response address whether it has any existing policy requiring accessible temporary routes and signage at active construction sites, and if not, whether it will adopt one in light of the pattern documented here and in the Complaint.

Respectfully submitted,

Name:

Address:

Phone/Email:

July 16, 2026

This addendum was prepared by the complainant with drafting assistance from AI tools.